

## 26PR00321 Estate of Michael E Demele

County: santa-barbara

Division: Decedent's Estate

Department: 4 SM-Cook

Hearing date: 2026-08-17

Motion: Petition: Letters Administration

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Tentative Ruling: Estate of Michael E Demele

Case Number

26PR00321

Case Type

Decedent's Estate

Hearing Date / Time

Mon, 08/17/2026 - 08:30

Nature of Proceedings

Petition: Letters Administration

Tentative Ruling

The following must be submitted:

Amended Duties and Liabilities Acknowledgement (Form DE-147). The proposed personal representative must fill out and sign this form completely by listing the address and telephone number, and submit it to the court. (Prob. Code, § 8404.) The telephone number was not listed.

Waivers of Bond. Bond must be waived by all adult heirs at law. Petitioner must file bond waivers (Form DE-142) for all heirs or devisees named in a will. Under the circumstances of this case, it is recommended the Court does not waive bond.

Nomination of Administrator. Petitioner does not have priority of administration over the surviving spouse, or children of the decedent pursuant to Probate Code section 8461. Please submit a nomination from all those with equal or greater priority. A

written declination must be filed by or on behalf of an individual who is entitled to priority for issuance of Letters of administration but does not desire to act, or evidence must be produced that the person with priority is not competent under Probate Code section 8402 or refuses to act. (Local Rule 1752(d)1.)

Supplement re: Probate vs. Spousal Property Petition. The petition requests probate of a Decedent's estate who left a surviving spouse. Petitioner must submit supplement explaining why probate of this estate is favorable over the following procedures:

Spousal or Domestic Partner Property Petition (form DE-221)

Affidavit for Disposition of Community Property Real Estate (Probate Code 13540-13541)

Disposition of Community Property Securities (Probate Code 13545)

Affidavit for Collection of Compensation Owed to Deceased Spouse or Registered Domestic Partner (Probate Code 13600)

Proposed Letters (Form DE-150). Proposed letters must be submitted with relief that matches that requested in the petition. No such document was filed with the court.

If the documents curing these deficiencies are not processed by 8:00 a.m. on August 14, 2026, it is recommended that the matter be continued to a date to be set by the Court at the hearing, unless the party appears and requests a different date, or submits a request for a different continuance date prior to the hearing. (Local Rule 1721(c)(2)(A-B).) If the matter is continued, documents must be submitted at least 10 days prior to the new hearing date to be considered.

Due to staffing limitations, processing times may be delayed. To assist in processing, attorneys and parties should include the next court date in the "Filing Description" field provided by the electronic service provider. That field is also used for further descriptions of the document being e-filed, so be sure to put the calendar date FIRST in the field – BEFORE any further description of the document being e-filed (e.g.: 06/28/16 For XYZ).

Judges

Judge Jed Beebe

Dept. 4 SM-Cook

312-C East Cook Street P.O. Box 5369

Santa Maria, CA 93456-5369

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